

GZ: 2021-0.404.151 dated June 10, 2021 (Case Number: DSB-D124.4082)

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DECISION STATEMENT

The Data Protection Authority decides on the data protection complaint of Anita A*** (complainant) dated May 10, 2021, against Dr. Paula N*** (respondent) regarding a violation of the right to confidentiality as follows:

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The complaint is upheld, and it is determined that the respondent has violated the complainant's right to confidentiality by accessing the complainant's data in the electronic vaccination passport on May 6, 2021.

Legal bases: Art. 4, Art. 6, Art. 9, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. The complainant stated in her submission dated May 10, 2021, that the respondent had violated her right to confidentiality by accessing her ELGA vaccination data. Upon inquiry, she was informed that the access was for private purposes. The complainant is not a patient of the respondent's practice, and the respondent's access occurred due to a private family meeting of the complainant with her sister-in-law, who works as a secretary in the respondent's practice. A screenshot from the ELGA protocol was attached to the complaint.

2. The respondent stated on May 6, 2021, in summary, that it is correct that she accessed the complainant's electronic vaccination passport on May 6, 2021. As a physician, she is obliged to store medication data in the e-medication and the Covid-19 vaccination in the e-vaccination passport and therefore has access to these two functions.

The complainant is the sister-in-law of the respondent's assistant. The assistant informed her that a family celebration was planned for the weekend. Since it had become known that clusters frequently occur after family celebrations, she conducted a risk assessment for herself and her employee in this way.

Since the beginning of the pandemic, she has managed to keep Covid-19 infections away from the practice. The practice has never been officially closed, so she has always been able to be there for her patients. Neither her assistants nor she herself have contracted Covid-19.

The only intention behind querying the complainant's vaccination passport was to assess the infection risk for her assistant to ensure the uninterrupted operation of the practice and to avoid infecting patients and other practice staff with the virus. Furthermore, she is bound by medical confidentiality and therefore did not share this information with anyone else.

3. The complainant stated on May 30, 2021, during the hearing of the parties, that the respondent could not have known that she had attended the family celebration. Furthermore, she indicated that the respondent could have asked the complainant personally.

B. Subject of the Complaint

The subject of the complaint is whether the respondent violated the complainant's right to confidentiality by accessing the complainant's data in the electronic vaccination passport.

C. Findings of Fact

1. The respondent is a practicing physician and operates a practice in L***. The respondent and the complainant know each other, as the complainant's sister-in-law is an employee in the respondent's practice.

2. The respondent's employee informed the respondent on the evening of May 6, 2021, that a family celebration was planned for the weekend.
3. The aforementioned employee of the respondent had received only one Covid-19 vaccination by May 6, 2021.
4. On May 6, 2021, the respondent accessed data of the complainant in the electronic vaccination passport.

Assessment of Evidence: The findings made are based on the consistent submissions as well as the submitted communications of the parties.

D. From a legal perspective, it follows that:

The complainant asserts in her complaint dated May 10, 2021, that the respondent violated her fundamental right to confidentiality pursuant to § 1 para. 1 DSG by querying the electronic vaccination passport.

D.1. Regarding the right to confidentiality:

§ 1 para. 1 DSG stipulates that everyone, particularly with regard to the respect for their private and family life, has the right to confidentiality of personal data concerning them, provided there is a legitimate interest in doing so.

The data collected by the respondent during the query is undisputedly personal data of the complainant within the meaning of Art. 4 no. 1 GDPR. There is also a legitimate interest in the confidentiality of this personal data. Therefore, the scope of application of § 1 para. 1 DSG is opened. Furthermore, it must be examined whether the entries in the electronic vaccination passport can be classified as health data within the meaning of Art. 4 no. 15.

In this regard, it should first be noted that the wording of Art. 4 no. 15 GDPR does not refer to a certain (minimum) impairment of physical or mental health, which supports a broad interpretation of the term "health data." This is even clearer in Recital 35 of the Regulation, which states that all data from which information about the past, present, and future physical or mental health status of the affected person can be derived should be considered personal health data.

These considerations are also supported by the case law of the CJEU, which states that the term "health data" should be interpreted broadly (see the comparably relevant legal situation under Directive 95/46, CJEU judgment of November 6, 2003, C 101/01, Case Lindqvist, para. 50 f).

Accordingly, the information regarding a "vaccination having taken place" or "not having taken place" is to be classified as health data, and the data protection authority therefore states that the respondent has collected health data of the complainant within the meaning of Art. 9 para. 1 GDPR through the query.

D.1.1 Regarding the restrictions of the fundamental right to confidentiality

However, the fundamental right to confidentiality is not absolute and may be restricted by certain permissible interventions. In the present case, health data was processed in accordance with Art. 4 no. 15 GDPR. These are classified as a special category of personal data under Art. 9 para. 1 GDPR and may only be processed in the cases specified in para. 2. Therefore, processing can only be justified if one of the exceptions regulated in § 1 para. 2 DSG in conjunction with Art. 9 para. 2 GDPR is present.

In comparison to Art. 6 GDPR, this represents a stricter legal regime. Art. 9 para. 2 GDPR establishes exceptions to the processing prohibition of Art. 9 para. 1 and restricts the permissibility of data processing to specific circumstances listed in para. 2 lit. a – j, which are narrower than those for the processing of "non-sensitive" data in Art. 6 para. 1, particularly the grounds for permissibility of "processing in the legitimate interest of the controller or a third party" (Art. 6 para. 1 lit. f) and "processing for the performance of a contract" (Art. 6 para. 1 lit. b) are absent (see Kastelitz/Hötzendorfer/Tschohl in Knyrim, DatKomm Art. 9 GDPR para. 1).

D.2 Legality of the processing

According to its own statements, the respondent bases the processing of personal data analogously on a predominant legitimate interest, stating that the query was made for the protection of its employee and patients.

Regarding the "predominant legitimate interests" of the respondent, reference can be made to what has already been stated under point D.1.1. Since the justification ground found in Art. 6 para. 1 lit. f

GDPR is not covered by Art. 9 para. 2 GDPR, the invocation of this exclusion ground is consequently inadmissible.

No other reasons that would make the recording lawful in light of the other intervention possibilities under Art. 9 para. 2 GDPR are evidently present and were not raised by the respondent.

D.3 Conclusion

The data processing in question (query of the electronic vaccination passport) cannot be based on any of the mentioned permissibility grounds and is therefore deemed unlawful, resulting in a violation of the right to confidentiality.

It was therefore decided accordingly.